

23BBCV01487 23BBCV01487

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-26

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Case Number: 23BBCV01487 Hearing Date: June 26, 2026 Dept: B

Hon. Lee

S. Arian, Dept B

MOTIONS TO COMPEL INITIAL RESPONSES

Hearing Date: 6/26/26;

CASE NO./NAME: 23BBCV01487 MAHNAZ

SADANIAN, et al. vs PROVIDENCE ST. JOSEPH MED CTR EMERGENCY DEPT., et al.

Moving Party: Defendant

Roger C. Lai

Responding Party: Plaintiff Mahnaz Sadanian

Notice: Sufficient;

Ruling: MOOT

Background

This action arises from

personal injuries Plaintiff Mahnaz Sadanian allegedly suffered after a visit to Providence Saint Joseph Medical Center Emergency Department, where she was treated by Defendant Dr. Roger C. Lai. The Third Amended Complaint alleges five causes of action: (1) professional negligence; (2) battery; (3) sexual battery; (4) loss of consortium; and (5) intentional infliction of emotional distress.

Motions to Compel Initial Responses

Defendant Roger C. Lai moves to compel Plaintiff Mahnaz Sadanian to provide responses to Lai's Requests for Production, Set Two, and Special Interrogatories, Set Three.

On May 7, 2026, Plaintiff served initial responses to the Requests for Production and to the Special Interrogatories. On May 14, 2026, Lai's counsel sent a meet and confer letter outlining the insufficient responses to Requests for Production Nos. 8-11, 13-14, 16-17, 19-20, 22-23, 25-26, 28-29, 31-32, 34, 37-38, 42-44, 46-50, 52, 54-58 and Special Interrogatories Nos. 54, 58, 63-66, and 75. On June 3, 2026, Plaintiff served supplemental responses.

Accordingly, the motions are now moot.

Lai moves for sanctions against Plaintiff and her attorney in the sum of \$2,220.00 for both motions (\$1,110.00 each). Lai's counsel declares she spent a combined 4 hours preparing the motions and will incur an additional 4 hours reviewing and replying to opposing papers and 2 hours appearing at the motions' hearings. Counsel bills at a rate of \$210/hour. Lai also incurred \$120 in filing fees.

Plaintiff did not provide sufficient justification for failing to provide responses to the discovery requests before the filing of these motions (February 17, 2026). The Court finds the amount of sanctions requested reasonable and thus awards sanctions of \$2,340 against Plaintiff and her attorney, jointly and severally, to be paid within 30 days.

Plaintiff also asked for sanctions against defendant in an unidentified amount based on the theory that Lai lacked substantial justification for these motions because Plaintiff substantially complied with her discovery obligations. However, Plaintiff's responses were only served after these motions were filed, almost 3 months after they were due. Thus, Plaintiff's request is denied.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the

hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court